

ELIZABETH II



1970 CHAPTER xlv

An Act to confer further powers on the Cumberland County Council and on local authorities in the administrative county of Cumberland in relation to lands, development and the local government, improvement and finances of the county; and for other purposes. [23rd July 1970]

WHEREAS—

(1) It is expedient that further and better provision should be made with reference to lands, industrial and other development and for the local government, improvement and finances of the administrative county of Cumberland, including further provision for the superannuation of officers and servants of the county council and local authorities and of persons who contribute to the superannuation funds of the county council and local authorities, and that the powers of the county council and of other authorities therein should be enlarged and extended as provided in this Act:

(2) It is expedient that the other provisions contained in this Act should be enacted:

(3) The purposes of this Act cannot be effected without the authority of Parliament:

(4) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 1933 c. 51: have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short and
collective
titles.

1.—(1) This Act may be cited as the Cumberland County Council Act 1970.

(2) The Cumberland County Council Acts 1948 and 1964 and this Act may be cited together as the Cumberland County Council Acts 1948 to 1970.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands and industrial development.

Part III.—Finance.

Part IV.—Superannuation.

Part V.—Miscellaneous and general.

Interpretation.

3.—(1) In this Act, unless otherwise expressly enacted or the subject or context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—

1937 c. 68.

“ Act of 1937 ” means the Local Government Superannuation Act 1937;

1964 c. xxxiv.

“ Act of 1964 ” means the Cumberland County Council Act 1964;

“ Council ” means the county council of the county;

“ county ” means the administrative county of Cumberland;

“ enactment ” means any enactment, whether public general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of any enactment;

“ land ” includes land covered by water and any interest in land or any easement or right in, to or over land;

“ local authority ” means the council of a borough or urban or rural district in the county;

“ Minister ” means the Minister of Housing and Local Government;

“ officer ” includes servant;

“ the superannuation fund ” means the superannuation fund maintained by the Council under Part I of the Act of 1937.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment including this Act.

PART II

LANDS AND INDUSTRIAL DEVELOPMENT

4.—(1) Subsection (1) (b) of section 15 (Acquisition of land for development) of the Act of 1964, as having effect before the passing of this Act in accordance with the provisions of section 19 (Duration of foregoing provisions) of the Act of 1964, and thereunder continued in force until 31st December, 1974, shall be amended as follows:—

Amendment
of sections 15
and 19 of
Act of 1964.

For the words “carried on or to be carried on” there shall be substituted the words “which provides or will provide employment for persons residing”.

(2) (a) As so amended the said section 15 shall continue in force until 31st December, 1974.

(b) The Minister may on the application of the Council by order extend the period referred to in paragraph (a) of this subsection until 31st December, 1990.

(c) An order under this subsection shall be made by statutory instrument and contain such supplemental or incidental provisions as appear to the Minister to be expedient.

(d) An order under this subsection shall be subject to annulment in pursuance of a resolution of either House of Parliament.

5.—(1) The provisions of the Act of 1964 specified in subsection (2) of this section, as having effect before the passing of this Act in accordance with the provisions of section 19 (Duration of foregoing provisions) of the Act of 1964, and thereunder continued in force until 31st December, 1974, shall become permanent and the said section 19 is hereby repealed.

Sections 16,
17 and 18 of
Act of 1964
made
permanent.

(2) The provisions of the Act of 1964 mentioned in subsection (1) of this section are the following:—

Section 16 (Power to Council to assist industry);

Section 17 (Agreements with statutory undertakers for provision of works);

Section 18 (Power to Council to guarantee rents, etc., of industrial buildings).

6.—(1) Where the Council desire to carry out works under section 7 (Control of access to lands on seashore) of the Act of 1964 and the works cannot be carried out by reason of the absence or disability of any person whose land it is reasonably necessary to enter for that purpose, they may be authorised by means of an order made by them and confirmed by the Minister under this section to enter on lands and to carry out such works, and any such order shall confer upon the Council sufficient rights or interest for the purposes of the said section 7.

Power to
facilitate works
to prevent
erosion.

(2) Before submitting an order to the Minister the Council shall—

(a) in each of two successive weeks publish in one or more local newspapers circulating within the locality in which

PART II
—cont.

the land to which the order relates is situated a notice stating that the order has been made and is about to be submitted for confirmation and the purpose for which the land is required, describing the land, naming a place in the locality where a copy of the order and any map referred to therein may be inspected and specifying the time (not being less than twenty-eight days from the first publication of the notice) within which, and the manner in which, objections to the order can be made;

(b) serve a copy of the notice on every person known to them to have an interest in the land to which the order relates and affix a copy of the notice to some conspicuous object on the land.

(3) If no objection is made to the order within the said period of twenty-eight days, or if all objections so made are withdrawn, the Minister may, upon being satisfied that the proper notices have been published, served and affixed, confirm the order, with or without modifications.

(4) If any objection so made is not withdrawn the Minister shall, before confirming the order, give to the objector and to the Council an opportunity of being heard by a person appointed by him for the purpose and, after considering the objection and the report of the person so appointed, may confirm the order, with or without modifications.

(5) As soon as may be after the order has been confirmed the Council shall publish, in one or more local newspapers circulating in the locality in which the land to which the order relates is situated, a notice describing the land, stating that the order has been confirmed and naming a place where a copy of the order as confirmed and of any map referred to therein may be inspected at all reasonable hours, and shall serve a copy of the notice and a copy of the order as confirmed on any persons on whom notices were required to be served under subsection (2) (b) of this section.

(6) The Council shall pay compensation to any person who suffers loss in respect of an interest in any land in consequence of the confirmation of an order under this section, and the amount of the compensation shall, in case of dispute, be determined in accordance with the Land Compensation Act 1961.

1961 c. 33.

PART III

FINANCE

Power to
borrow.

7.—(1) The Council may borrow—

(a) such sums as may be necessary for any of the purposes of this Act;

(b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Local Government Act 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

PART III
—cont.
1933 c. 51.

(2) The Council shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by subsection (1) (a) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1946 c. 58.

8. In addition to the modes of borrowing prescribed by the Local Government Act 1933, the Council may raise money—

(1) for any purpose for which the Council are authorised to borrow;

(2) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Council may properly be applied;

by means of bills (to be called “Cumberland County Council Bills” and in this section referred to collectively as “bills” and separately as a “bill”), subject to, and in accordance with, the following provisions:—

Power to
Council to
raise money
by issue of
bills.

(a) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:

(b) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:

(c) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Council may determine:

(d) Bills shall be issued under the authority of a resolution passed by the Council, and shall bear the signature of the treasurer to the Council or of some other person authorised by the Council:

(e) The Council may make regulations providing for—

(i) the preparation and form and the mode of issue, payment and cancellation of bills;

(ii) the issue of a new bill in lieu of one defaced, lost or destroyed;

(iii) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills;

(iv) the giving of a proper discharge on the payment of a bill; and

PART III
—cont.

(v) the amendment or revocation of any regulations previously made or deemed to have been made under this paragraph:

- (f) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill, and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:
- (g) The aggregate amount payable on bills current at any one time shall not (except by the amount payable, on bills issued shortly before any other bills fall due, in order to pay off the last-mentioned bills) exceed—
- (i) the sum of one million pounds; or
 - (ii) one-fifth of the amount of the estimated gross rate income of the county during the then current financial year;
- whichever is the greater:
- (h) Subject to the provisions of the last foregoing paragraph the Council may renew a bill at maturity:
- (i) The Council may borrow for the purpose of repaying the principal money raised by bills but, except as aforesaid, any power of the Council to borrow shall be suspended to the extent of the amount which has been raised by the issue of bills:
- (j) In these provisions—

1967 c. 9.

“gross rate income” means the gross rate income as used in the determination of the product of a rate of one penny in the pound under rules made pursuant to section 113 of the General Rate Act 1967;

1933 c. 51.

“revenues” has the same meaning as in section 218 of the Local Government Act 1933;

“signature” includes a facsimile of a signature by whatever process reproduced.

Power to
Council to
raise money
by issue of
bearer bonds.

9. In addition to any other method by which the Council may raise any money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise the money by means of the issue of bearer bonds or other securities to bearer.

Power to
Council to
raise money
abroad.

10.—(1) Any method by which the Council are empowered by any enactment (including the last two foregoing sections) to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

(2) The powers conferred by the foregoing subsection shall be exercised only with the consent of the Treasury and subject to such conditions as the Treasury may impose.

PART III
—cont.

(3) Every sum borrowed by way of mortgage by the Council in a transaction authorised by this section shall be repaid in accordance with the provisions of section 212 of the Local Government Act 1933 or in accordance with the provisions of any consolidated loans fund scheme established by the Council under section 55 of the Local Government Act 1958.

1933 c. 51.

1958 c. 55.

(4) The enactments empowering the Council to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if—

- (a) for any reference in those enactments to sterling, there were substituted a reference to the foreign currency; and
- (b) for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency (adjusted, where necessary, to produce an amount which the Council consider appropriate having regard to all the circumstances of the transaction).

11.—(1) In its application to the Council section 21 (3) of the Act of 1937 shall have effect as if, for the obligation to invest any moneys forming part of, but not for the time being required to meet payments out of, the superannuation fund in securities in which trustees are authorised to invest, there were substituted an obligation to invest such moneys as follows (namely):—

Investment of
superannuation
fund.

- (a) in or upon any investments for the time being authorised by law for the investment of trust funds; or
- (b) in or upon any of the stocks, funds or securities of any dominion, commonwealth, union, dependency or colony forming part of the British Commonwealth of Nations, or any province or state having a separate local legislature and forming part thereof respectively; or
- (c) in or upon any of the stocks, bonds, mortgages or securities of any municipality, county or district council or local or public authority or board in the United Kingdom or any such dominion, commonwealth, union, dependency, colony, province or state as aforesaid authorised under any general or special Act of the United Kingdom Parliament or the legislature concerned to issue the same; or
- (d) in or upon any stocks, shares, bonds, mortgages or securities, the capital whereof, or a minimum rate of dividend or interest whereon, is guaranteed by the United Kingdom Government or by the government of any such dominion, commonwealth, union, dependency, colony, province or state as aforesaid; or

PART III
—cont.

- (e) in or upon any of the stocks, funds or securities of the government of any foreign country or state; or
 - (f) in or upon the bonds, debentures, debenture stock, convertible debenture stock, obligations or securities of any company incorporated under any general or special Act of the United Kingdom Parliament or under any royal charter, or registered or incorporated in any part of the world; or
 - (g) in or upon any guaranteed, preference or ordinary stock or shares, or any preferred or deferred or other stock or shares, of any company incorporated under any general or special Act of the United Kingdom Parliament or under any royal charter, or registered or incorporated in any part of the world, being stock or shares which at the time of making the investment are quoted on any recognised stock exchange or similar institution; or
 - (h) in the purchase, whether alone or jointly, or in common with any other person, of immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands, or of any share or interest in such immovable property, including any interest in such immovable property comprised in a building agreement providing for the grant of a lease of such property contingent on the erection or completion of the building specified in such agreement; or
 - (i) in the advance of money upon the security of—
 - (i) immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands; or
 - (ii) any legal estate or interest in immovable property comprised in a building agreement as specified in paragraph (h) of this subsection;and in any such case whether the security be taken by a separate and distinct mortgage or security made exclusively to the Council, or by a mortgage or security made jointly to the Council and any other person; or
 - (j) in undertaking or financing, whether alone or jointly with any other person—
 - (i) the erection of a new building or the improvement or extension of an existing building; or
 - (ii) building operations or other development; on land belonging to the Council or to any other person, or on land which is, or will be, held by the Council jointly or in common with any other person; or
 - (k) upon the security of freehold or leasehold ground rents, land charges or rentcharges;
- with power to vary such investments from time to time by sale and reinvestment or otherwise:

Provided that—

PART III
—cont.

- (i) no such moneys as aforesaid shall be invested in any investment of the nature specified in paragraph (g) of this subsection at any time when the value of all the investments made under the said paragraph (g) which form part of the superannuation fund equals or exceeds three-quarters of the total value of the assets of that fund; and
- (ii) no such moneys as aforesaid shall be invested in any investment of the nature specified in paragraphs (h) and (j) of this subsection at any time when the value of all investments made under the said paragraphs (h) and (j) which form part of the superannuation fund equals or exceeds one-quarter of the total value of the assets of that fund.

(2) For the purposes of the last foregoing subsection the value of any investment of moneys forming part of the superannuation fund shall be treated as being the value of the investment at the time at which it was made.

(3) For the purposes of the foregoing provisions of this section, an investment in the units of a unit trust scheme, or in participation certificates or in any form of participation under any trust or scheme established in the United Kingdom or elsewhere having the effect of enabling persons to participate in the profits and income arising from the acquisition, holding, management or disposal of such securities or of such property or interest in property as are specified in subsection (1) of this section, shall be regarded as an investment in the securities or property in question.

(4) In this section—

“participation certificate” means any document conferring upon the holder the right to participate in (or constituting evidence of the right of the holder to participate in) the profits or income arising from the acquisition, holding, management or disposal of a particular investment specified or described in the document;

“recognised stock exchange” in its application to the United Kingdom means any body of persons which is for the time being a recognised stock exchange for the purposes of the Prevention of Fraud (Investments) Act 1958 or 1958 c. 45. the Belfast Stock Exchange;

“securities” includes shares, debentures, treasury bills and tax reserve certificates;

“unit trust scheme” has the meaning assigned thereto by section 26 (1) of the Prevention of Fraud (Investments) Act 1958.

12. Nothing in this Part of this Act shall exempt the Council from the provisions of the Exchange Control Act 1947.

Saving for
exchange
control.
1947 c. 14.

PART IV

SUPERANNUATION

Interpretation
for Part IV.

13. In this Part of this Act, unless otherwise expressly enacted or the subject or context otherwise requires, words and expressions to which meanings are assigned by the Act of 1937 have the same respective meanings, and—

“contributor” means a contributor to the superannuation fund as respects whom the Council are the employing authority;

“death grant” and “transfer value” have, in relation to a contributor, the meanings assigned to them respectively by the Regulations of 1954;

“the new superannuation provisions” means this section and sections 14 to 17 of and the schedule to this Act;

“the principal Acts” means the Local Government Superannuation Acts 1937 to 1953;

“the Regulations of 1954” means the Local Government Superannuation (Benefits) Regulations 1954;

“return of contributions” in relation to a person who has ceased to be a contributor includes any sum paid to, or in respect of, him by way of interest on the amount of the contributions returned to him;

“superannuation benefit” includes any benefit which is or may be granted in pursuance of the principal Acts or the regulations made thereunder or in pursuance of any local Act or scheme or local Act scheme.

Operation of
new super-
annuation
provisions.

14.—(1) The new superannuation provisions shall come into force on 1st September, 1970.

(2) Without prejudice to the provisions of section 16 (Power to require designated sums to be paid to trustees), section 17 (Transfers of employment), section 18 (Application of new superannuation provisions to other employing authorities) and section 19 (Application of new superannuation provisions to local authorities) of this Act, the provisions of the principal Acts and the regulations made thereunder shall apply and have effect in relation to a person who is a contributor, on or after the date of the coming into force of the new superannuation provisions, subject to the extensions, modifications and applications of the said Acts and regulations contained in the new superannuation provisions.

Benefits in
certain cases
of premature
retirement.

15.—(1) Where, after the coming into force of the new superannuation provisions, the employment of a contributor who has attained the age of fifty-five years and completed ten years' service is terminated in the interests of efficiency before he has attained the age of sixty-five years, he shall be entitled to superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment:

Provided that this subsection shall not apply to a contributor if not later than one month after ceasing to hold his employment he notifies the Council in writing that he does not wish this subsection to apply to him.

PART IV
—cont.

(2) Where, after the coming into force of the new superannuation provisions, a contributor who has attained the age of fifty-five years and completed twenty-five years' service but has not attained pensionable age terminates his employment at his own request, then superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment shall be payable in lieu of any entitlement to a return of contributions under section 10 of the Act of 1937:

Provided that—

- (i) where a person has become entitled to a superannuation benefit by virtue of this subsection, he may, by notice given to the Council in writing at any time before any payment on account of such benefit has been made to him, elect that this subsection, and any rights to which he is entitled thereunder, shall cease to apply in relation to him as from the date on which such notice is given;
- (ii) unless the Council otherwise determine on compassionate grounds, no benefit shall be paid to a person by virtue of this subsection before the date on which he attains pensionable age.

(3) Where a person who has become entitled to a superannuation benefit by virtue of subsection (2) of this section dies before any payment on account of such benefit has been made to him, as from the date of his death the like benefits shall be payable in respect of him as would have been paid if he had died on the last day of his employment as a contributor.

(4) For the avoidance of doubt it is hereby declared that where a person is for the time being entitled to any benefit by virtue of subsection (2) of this section, that benefit shall be deemed to be a superannuation benefit for the purpose of the definition of the word "service" in section 40 (1) of the Act of 1937 whether or not any payment has been made to him on account thereof.

(5) For the purposes of section 16 of the Local Government Superannuation Act 1953, and of any rules made thereunder, 1953 c. 25. a person entitled to any superannuation benefit by virtue of subsection (2) of this section shall be deemed to cease to hold his employment on the day immediately preceding the day on which that benefit first becomes payable to him, and a superannuation benefit as aforesaid shall be deemed to be such a superannuation allowance or benefit as is referred to in subsection (1) of the said section 16.

PART IV
—cont.

(6) In this section “pensionable age” in relation to any person means the earliest age at which, if he were to remain a contributor without a break of service, he would, on ceasing to hold his employment, become entitled to superannuation benefits by reason of having, otherwise than under this section, attained such age and completed such period of service as is prescribed in the principal Acts or the Regulations of 1954, as the case may be.

Power to
require
designated
sums to be
paid to
trustees.

16.—(1) A contributor may at any time, by notice in writing to the Council, given in such form as the Council may approve, direct—

- (a) that the provisions of this section shall apply to the amount (if any) which would, but for the giving of such notice, be payable to his estate either by way of death grant or as a sum calculated by reference to the aggregate amount of his contributions to the superannuation fund, with compound interest thereon; and
- (b) that any such amount (hereafter in this section and in the schedule to this Act referred to as “the designated sum”), instead of being paid to his estate, shall be paid to such responsible persons, not being less than two nor more than four in number, as shall be appointed for that purpose by the Council (hereafter in this section and in the said schedule referred to as “the trustees”) to be held upon the trusts, and with and subject to the powers and provisions, in force under the said schedule at the date of such direction.

(2) Any direction given in accordance with this section shall be effective, and the designated sum shall accordingly be paid to the trustees and shall be held by them upon the trusts, and with and subject to the powers and provisions, in force under the said schedule at the date of such direction.

(3) The trusts, powers and provisions set out in the said schedule may from time to time be varied by resolution of the Council, but so that the trusts, powers and provisions as so varied shall only apply in relation to directions received by the Council after the making of such variations.

(4) Any direction given by a contributor under this section shall be irrevocable and binding on such contributor and his estate and all persons interested therein.

(5) In this section and in the said schedule “contributor” includes any person who, on or after the date of the coming into force of the new superannuation provisions, is a contributor to the superannuation fund, and “former contributor” shall be construed accordingly.

17.—(1) The Council may, in accordance with the provisions of a scheme made by them for the purposes of this section—

PART IV
—cont.

Transfers of
employment:

(a) as respects any contributor who ceases or has ceased to hold employment under the Council in order to enter an employment (in this paragraph referred to as “the new employment”) in relation to which interchange arrangements are not for the time being in force, if that contributor so desires, in lieu of making any such payment to him from the superannuation fund as is referred to in section 10 of the Act of 1937 (or, where such a payment has been made, if it is repaid to the superannuation fund by the contributor), either—

(i) make from the superannuation fund in respect of him a payment by way of a transfer value to the body or persons responsible for administering any superannuation scheme in connection with the new employment; or

(ii) subject to such consequential provisions as may be prescribed in the scheme, award to, or in respect of, him superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment under the Council:

Provided that no benefit shall be paid to a person by virtue of this subparagraph before such date as may be prescribed under the scheme; and

(b) as respects any person who enters or has entered into employment under the Council from an employment in relation to which interchange arrangements are not for the time being in force, receive any payment made by, or in respect of, him to the superannuation fund, whether by way of transfer value or otherwise, and shall confer on him by virtue of such payment such rights under the principal Acts, and the regulations made thereunder, as may be prescribed under the said scheme.

(2) A scheme made under this section shall be of no effect unless it has been approved by the Minister, and the Minister may approve any such scheme, either with or without modifications, after consultation with such organisations as are, in his opinion, representative of the interests concerned.

(3) A scheme made under this section may be amended or revoked by a subsequent scheme.

(4) Any body or persons responsible for administering a superannuation scheme in connection with an employment as respects which interchange arrangements are not for the time being in

PART IV
—cont.

force, may make any amendments or modifications of that superannuation scheme which may be desirable to facilitate the operation of any scheme made by the Council under this section.

(5) Where any provision of the principal Acts or the regulations made thereunder which has effect in relation to a contributor contains a reference to a transfer value, such reference shall be deemed (as may be appropriate) to include a reference to any such payment by way of a transfer value as is referred to in subsection (1) (a) (i) of this section or to such payment by way of a transfer value or otherwise as is referred to in subsection (1) (b) of this section.

1948 c. 33.

(6) In this section “interchange arrangements” means any arrangements, whether by virtue of rules made under section 2 of the Superannuation (Miscellaneous Provisions) Act 1948 or by virtue of any other enactment apart from this section providing for the preservation of superannuation rights following a change of employment.

Application
of new
superannuation
provisions to
other
employing
authorities.

18.—(1) An authority to which this section applies may by resolution adopt all or any of the new superannuation provisions as from such date, not being earlier than 1st September, 1970, as may be specified in such resolution, and where any provisions are so adopted they shall apply and have effect in relation to the authority as if—

- (a) any reference therein to a contributor were a reference to a contributor to the superannuation fund as respects whom the authority are the employing authority; and
- (b) any reference to the Council in section 15 (Benefits in certain cases of premature retirement) or subsection (1) (a) and (b) of section 17 (Transfers of employment) were a reference to the authority.

(2) Where in pursuance of the last foregoing subsection any provisions are adopted by an authority to which this section applies as from a date later than 1st September, 1970, any reference in those provisions to the date of the coming into force of the new superannuation provisions shall be construed in relation to the authority as a reference to such later date.

(3) This section applies to—

- (a) a local authority which do not maintain a superannuation fund under Part I of the Act of 1937;
- (b) any organisation, undertaking or body in respect of which there is for the time being in force an admission agreement with the Council pursuant to section 15 of the Local Government Superannuation Act 1953;

1953 c. 25.

- (c) any other employing authority in relation to which the superannuation fund is the appropriate superannuation fund within the meaning of section 1 (3) (d) of the Act of 1937.

PART IV
—cont.

19.—(1) Where a local authority or a combination of local authorities maintain a superannuation fund under Part I of the Act of 1937, any such local authority may by resolution adopt all or any of the new superannuation provisions as from such date, not being earlier than 1st September, 1970, as may be specified in such resolution, and where any provisions are so adopted they shall apply and have effect in relation to that local authority as if—

Application
of new
superannuation
provisions
to local
authorities.

- (a) any reference therein to the Council were a reference to that local authority;
- (b) any reference therein to a contributor were a reference to a contributor to the superannuation fund maintained by that local authority or combination of local authorities under Part I of the Act of 1937 as respects whom that local authority are the employing authority; and
- (c) any reference therein to the superannuation fund were a reference to the superannuation fund maintained by that local authority or combination of local authorities under Part I of the Act of 1937.

(2) If any such local authority as is referred to in subsection (1) of this section adopts all or any of the new superannuation provisions, any other employing authority in relation to which that local authority or combination of local authorities are the appropriate administering authority may by resolution adopt all or any of the new superannuation provisions as from such date as may be specified in such resolution, and where any provisions are so adopted they shall apply and have effect in relation to the employing authority as if—

- (a) any reference therein to a contributor were a reference to a contributor to the superannuation fund maintained by the local authority or combination of local authorities as respects whom the authority are the employing authority; and
- (b) any reference to the Council in section 15 (Benefits in certain cases of premature retirement) or subsection (1) (a) and (b) of section 17 (Transfers of employment) were a reference to the employing authority.

20.—(1) In its application to the Council section 18 of the Local Government Superannuation Act 1953 shall have effect as if—

- (i) for the words “to the widow or any other dependant” in subsections (1) and (2) there were substituted the words “to a dependant”;

Extension of
powers of
Council to
grant
gratuities to
widows and
dependants
of former
employees.

1953 c. 25.

PART IV
—cont.

(ii) after subsection (1) (c) there were inserted the following new paragraph:—

“(d) partly by way of an annuity for the benefit of the widow and partly by way of periodical payments for the benefit of such of the children of the deceased employee who shall for the time being be under the age of twenty-one years:

Provided that the aggregate of the capital value of such annuity and of such periodical payments shall not exceed the amount aforesaid.”

(2) Subsection (1) of the said section 18, as having effect in accordance with the last foregoing subsection, shall apply to a dependant of a former employee of the Council who dies within one year after ceasing to be in their employment as it applies to a dependant of an employee who dies whilst in their employment:

Provided that no gratuity shall be granted under this subsection to a dependant of a former employee to whom a gratuity has been granted under subsection (1) of the said section 18.

Application
of further
superannuation
provisions
to certain
authorities.

21.—(1) The provisions of section 83 (Exclusion of certain remuneration and service for superannuation purposes) and section 84 (Transfer of certain sums from fund) of the Act of 1964 and of section 20 (Extension of powers of Council to grant gratuities to widows and dependants of former employees) of this Act shall apply to a local authority and to a joint committee of local authorities established under section 2 of the Act of 1937 as they apply to the Council, and for that purpose those provisions shall have effect as if for references therein to the Council and to the county there were substituted, in the case of a local authority, references to the local authority and to their district respectively and, in the case of any such joint committee, references to that committee and to the districts of the constituent authorities respectively, and subject in both cases to any other necessary modifications.

(2) (a) The provisions of section 20 of this Act shall also apply to any authority to which this subsection applies as they apply to the Council, and for that purpose those provisions shall have effect as if the reference in subsection (2) of the said section 20 of this Act to an employee of the Council were a reference to an employee of the authority.

(b) This subsection applies to—

(i) any organisation, undertaking or body in respect of which there is for the time being in force an admission agreement with the Council pursuant to section 15 of the Local Government Superannuation Act 1953;

- (ii) any other employing authority in relation to which the superannuation fund is the appropriate superannuation fund within the meaning of section 1 (3) (d) of the Act of 1937.

PART IV
—cont.

PART V

MISCELLANEOUS AND GENERAL

22.—(1) The Council and any person having an estate or interest in any land within the county may enter into an agreement which may provide for all or any of the following:—

Agreements
with
developers.

- (a) determining the order in which development of the land shall be carried out as between the different parts of the land and as between the different parts of the development of any part of the land;
- (b) determining the time by which development of the land shall be completed or the times by which the parts of that development shall be completed;
- (c) providing that the estate or interest of that person in the land shall not be conveyed, leased or assigned, except by way of mortgage or legal charge, to any person unless the Council shall have first satisfied themselves that that person has or can command sufficient financial resources to carry out development of the land and to implement all the provisions of the agreement;
- (d) the dedication to the public of rights of way over the land or over a part or parts of any building or structure which is comprised in the development and the lighting, maintenance and cleansing of the public rights of way so dedicated, including the maintenance and cleansing of the surface and the lighting of the building or structure over or above the public rights of way so dedicated and the provision and maintenance of any support of the public rights of way so dedicated;
- (e) arrangements relating to the provision, maintenance or use of facilities for the parking of vehicles for, or in connection with, development of the land;
- (f) arrangements for the maintenance of open spaces provided in connection with development of the land;
- (g) any other related or consequential matters.

(2) (a) An agreement entered into under subsection (1) of this section may contain positive and negative covenants and, whether they be positive or negative and notwithstanding that they may not enure, and may not be expressed to enure, for the benefit of any other land of the covenantee, they shall, if registered in the

PART V
—cont.

local land charges register, be enforceable by the Council against the covenantor and all persons deriving title by, through or under the covenantor.

(b) In the event of the person who has entered into an agreement under subsection (1) of this section or any person deriving title by, through or under him failing to perform any of the positive covenants contained in the agreement, the Council may, after giving not less than twenty-one days' notice of their intention to do so, enter on the land and do the work in default, and the expenses incurred by the Council in so doing shall be recoverable by them from the person in default.

(c) Except as may be expressly provided in the agreement, an agreement entered into under subsection (1) of this section shall be enforceable and be deemed to be intended to be enforceable in perpetuity or for the duration of the estate or interest which the person entering into the agreement has in the land at the time when the agreement is entered into.

(3) The Council may take or acquire shares or other securities in any company incorporated in the United Kingdom with which an agreement is entered into under this section.

1936 c. 49.

(4) Sections 277, 287 and 291 of the Public Health Act 1936 (which make provision for obtaining information as to ownership of premises, entry to premises and the recovery of certain expenses) shall have effect as if references therein to that Act included reference to this section.

(5) Before exercising the powers of this section in relation to any land within the Lake District National Park the Council shall consult the Lake District Planning Board.

1962 c. 38.

(6) In this section "development" has the same meaning as in section 12 of the Town and Country Planning Act 1962.

Prevention
of floods.

1948 c. xliii.

23. Section 36 (For prevention of floods) of the Cumberland County Council Act 1948 shall be amended as follows:—

After subsection (5) there shall be inserted the following subsection:—

"(5A) (a) Where, in pursuance of subsection (5) of this section, the Council have resolved to contribute the whole of any expenses which may be incurred by them under this section, they may proceed with the execution of such works without compliance with the provisions of subsection (3) of this section but in that case, before executing any such work, the Council shall give not less than twenty-eight days' notice of their intention to do so to every riparian owner and occupier on the portion of watercourse forming the site of such works:

Provided that in a case of emergency, the Council shall not be required to give twenty-eight days' notice but shall give such notice as is reasonably practicable to the said riparian owners and occupiers.

PART V
—cont.

(b) Notice given under this subsection shall specify the works to be executed and the portion of water-course forming the site of the works and shall state that a plan, section and specification of the works have been deposited at the office of the clerk for inspection by, or on behalf of, any owner affected by the works.

(c) If within twenty-eight days from the service of a notice under this subsection any such riparian owner delivers to the clerk a statement of objection to any such proposed work, the Council shall not proceed with the execution of any work to which such objection relates, other than emergency works, until the statement of objection is withdrawn or the Minister of Agriculture, Fisheries and Food has approved the work."

24.—(1) A committee lawfully authorised by the Council to exercise any powers of the Council under any enactment may, subject to any direction of the Council, appoint such sub-committees consisting either wholly or partly of members of the committee as the committee think fit, and subject as aforesaid may delegate, with or without restrictions or conditions, any of their functions to a sub-committee so appointed.

Delegation
of powers
to sub-
committees.

(2) (a) All the members of a sub-committee appointed by a finance committee of the Council shall be members of the Council.

(b) A majority of the members of any other sub-committee shall be members of the Council and, whenever at any meeting of any such sub-committee the members present thereat do not include a majority of members of the Council, any decision of the sub-committee shall have no effect unless it is confirmed by the committee.

(3) Nothing in this section shall authorise the appointment of a sub-committee for any purpose for which a committee are authorised or required to appoint a sub-committee by any other enactment for the time being in force.

(4) The foregoing provisions of this section shall apply to a local authority and, for that purpose, shall have effect subject to the substitution for references therein to the Council of references to the local authority and to any other necessary modifications.

PART V
—*cont.*

Protection
of members
and officers
from personal
liability.
1875 c. 55.

25. Section 265 of the Public Health Act 1875 (which affords protection to local authorities and their members and officers from personal liability) shall apply to the Council and a local authority as if any reference in that section to the said Act of 1875 included a reference to this Act, and as if references in that section to a member of a local authority included reference to a member of a committee or a sub-committee of the Council or of a local authority.

Powers of
Act to be
cumulative.

26. All powers and duties conferred or imposed by this Act shall be deemed to be in addition to, and not in derogation of, any other powers and duties conferred or imposed by any enactment, law or custom, and, subject to any express provision in this Act, all such other powers and duties may be exercised and shall be performed in the same manner as if this Act had not been passed.

Costs of Act.

27. The costs, charges and expenses preliminary to, and of and incidental to, the preparing, applying for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Council out of their county fund, or out of moneys to be borrowed under this Act.

SCHEDULE

TRUSTS APPLICABLE TO DESIGNATED SUMS

Section 16.

The trustees shall stand possessed of the designated sum to which a contributor has directed that section 16 (Power to require designated sums to be paid to trustees) of this Act shall apply and the income thereof upon the trusts, and with and subject to the following powers and provisions, that is to say:—

- (1) During the period of twenty-one years from the death of the former contributor, the trustees may pay or apply the designated sum and the income thereof or any part thereof respectively to, or for the benefit of, all or any one or more exclusively of the other or others of the following persons:—

(a) the widow or widower of such former contributor;

(b) the grandparents of such former contributor and the grandparents of the widow or widower of such former contributor and the grandparents of any previous or deceased wife or husband of such former contributor;

(c) the issue of such former contributor;

(d) any other issue of any of the grandparents referred to in sub-paragraph (b) of this paragraph; and

(e) the person or persons (if any, and whether of full age or not) to whom such former contributor has at any time put himself in loco parentis or of whose person or property such former contributor has at any time been guardian;

in such shares and in such manner as the trustees shall in their absolute discretion from time to time determine, and so that the trustees may, if they think fit, pay any sum to the parent or guardian of any infant to be applied for the benefit of such infant without seeing to the application thereof:

- (2) In addition to the powers conferred on them by virtue of paragraph (1) of this schedule, during the said period of twenty-one years, the trustees may at any time pay or apply the designated sum and the income thereof or any part thereof respectively to, or for the benefit of, any person who, in the opinion of the trustees, was wholly or in part dependent on the earnings of such former contributor at his death, in such manner as the trustees shall in their absolute discretion think fit:

- (3) Subject as aforesaid, the designated sum and the income thereof or so much thereof respectively as shall not have been paid or applied under the powers conferred by the foregoing provisions of this schedule, shall be paid to such person or persons (other than the Crown, the Duchy of Lancaster or the Duke of Cornwall) as would at the death of such former contributor have become entitled thereto under the Administration of Estates Act 1925, as amended by the Intestates' 1925 c. 23.

SCH.
—cont.
1952 c. 64.

Estates Act 1952, or any statutory modification or re-enactment thereof in force at the death of such former contributor if such former contributor had died possessed thereof intestate and domiciled in England and solvent, and so that such persons, if more than one, shall take in such shares and manner in which they would have taken under the provisions of the said Act or Acts, and subject to the conditions therein contained:

- (4) In this schedule “grandparent” and “issue” shall be construed as if the step-child, adopted child or illegitimate child of any person was that person’s child, and “issue” includes issue in any degree.

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